

24VECV03720 24VECV03720

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-07-10

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CO%2C07%2F10%2F2026

Source SHA-256: 727049db99c469d93096807aaa3611e86fe22e14ec411e3e5b21b3b737580c93

Case Number: 24VECV03720 Hearing Date: July 10, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

JESSIE PUENTES ROMO, OSCAR HERNANDEZ, DANIEL FELICIANO,

Plaintiff,

vs.

LYNN LAUDAHL, individually and DOES 1 through 20 Inclusive,

Defendant.

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

CASE NO.: 24VECV03730

ORDER GRANTING DEFENDANT'S MOTIONS TO COMPEL PLAINTIFFS' DEPOSITIONS

I. BACKGROUND

This case arises out of a motor vehicle accident involving Plaintiffs Jessie Puentes Romo, Oscar Hernandez, and Daniel Feliciano (collectively, "Plaintiffs") and Defendant Lynn Eve Laudahl ("Defendant"). Plaintiffs allege that on July 22, 2022, Defendant negligently operated a motor vehicle and struck Plaintiffs' vehicle in Sylmar, California, causing injuries and other damages.

Defendant now moves to compel Plaintiffs' depositions.

II. PROCEDURAL HISTORY

On July 22, 2024, Plaintiffs filed their Complaint, alleging causes of action for (1) Negligence and (2) Motor Vehicle Negligence.

On June 18, 2025, Defendant filed their Answer.

On December 18, 2025, the Court denied Defendant's Motions to Compel Discovery.

On January 21, 2026, the Court denied Defendant's Motion to Compel Discovery.

On February 17, 2026, Defendant filed nine motions to compel Plaintiffs' responses to Form Interrogatories, Special Interrogatories, and Requests for Production.

On March 26, 2026, Plaintiffs filed a Notice of Non-Opposition, representing that responses to the written discovery had been served on behalf of all three Plaintiffs.

On March 27, 2026, this Court granted Defendant's motions to compel and ordered each Plaintiff to serve code-compliant responses without objections on or before April 10, 2026 ("Order"). The Court also ordered Plaintiffs' counsel to pay Defendant's counsel \$647.50 in monetary sanctions by April 10, 2026.

On June 8, 2026, Defendant filed the instant Motions to Compel Plaintiffs' Depositions.

On June 30, 2026, the Court denied Defendant's Motion to Dismiss and for Terminating Sanctions.

On July 9, 2026, at 3:00 p.m., just 17 ½ hours before the hearing on the instant Motions, Plaintiffs' counsel filed a Declaration in Opposition to Defendant's Motion to Compel Deposition and Request for Monetary Sanctions.

///

///

///

III. LEGAL STANDARD

Code of Civil Procedure § 2025.450(a)[1] provides that, "[i]f, after service of a deposition notice, a party to the action... without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it..., the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice."

Code of Civil Procedure § 2025.410(a), provides that, "[a]ny party served with a deposition notice that does not comply with [the notice requirements in Code of Civil Procedure §§ 2025.210 through 2025.290] waives any error or irregularity unless that party promptly serves a written objection specifying that error or irregularity at least three calendar days prior to the date for which the deposition is scheduled, on the party seeking to take the deposition and any other attorney or party on whom the deposition notice was served."

IV. MEET AND CONFER

Code of Civil Procedure § 2025.450(b)(2) requires that the motion to compel deposition be accompanied by a meet and confer declaration, or, when the deponent fails to attend the deposition, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance.

Defendant's counsel, Julie H. Taouk, attests that despite her requests, Plaintiff's counsel has not identified alternative dates with their client's availability after they failed to appear for their noticed depositions. (See Declaration of Julie H. Taouk filed

June 8, 2026 ("Taouk Decl."), ¶ 6.)

The Court finds Defendant has complied with their § 2025.450(b)(2).

V. ANALYSIS

Defendant moves to compel Plaintiffs' depositions. Defendant initially scheduled Plaintiffs' depositions for September 18, 2025, and December 8, 2025. (See e.g. Compel Romo Taouk Decl., ¶ 3.) Defendant thereafter served a Second Amended Notice scheduling Plaintiffs' depositions on May 12, 2026. (See id., ¶ 4.) Defendant's counsel attests Plaintiffs failed to appear for their noticed deposition and have not identified alternative deposition dates to date. (See id., ¶¶ 5-6.)

Plaintiffs' counsel filed a Declaration hours before the hearing indicating a plaintiff had been unable to appear at the deposition on May 12, 2026, due to a medical emergency and that he and Defendant's counsel had been in settlement discussions while working on rescheduling the depositions.

An order compelling Plaintiffs' deposition and imposing sanctions is warranted. Although the Court denied Defendant's last motion for terminating sanctions, Plaintiffs' failure to comply with the Court's prior discovery orders requiring responses to written discovery a month before whatever medical emergency struck one of them on May 11, 2026, combined with their inability to schedule any depositions in the two months since then, lead to the inescapable conclusion that sanctions are warranted despite Plaintiff's counsel's 11th hour request to the contrary.

The Court GRANTS Defendants' Motions to Compel Plaintiffs' Depositions. The Court orders Plaintiffs to appear for their depositions on or before July 17, 2026. In addition, the Court orders Plaintiffs to incur the costs associated with expediting the transcripts in time for the upcoming Jury Trial date of July 29, 2026.

In light of the foregoing schedule, the Court continues the Final Status Conference currently set for July 17, 2026, to July 24, 2026, at 10 a.m. Trial counsel are once again ordered to personally appear at the Final Status Conference unless a Notice of Settlement is filed before the Court calls the case that day.

///

///

VI. DISCOVERY SANCTIONS

Code of Civil Procedure § 2025.450(g)(1) provides: "[i]f a motion under subdivision (a) is granted, the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust."

Defendant requests \$495.00 in discovery sanctions in connection with each Motion. Defendant's counsel attests she spent 1 hour preparing each Motion and anticipates spending 1 hour to attend the hearing; her hourly rate is \$185.00. (See id., ¶ 7.) Defendant's counsel attests that the filing fee was \$60.00 for each Motion and the court reporter no show fee for each deposition was \$250.00. (See id.)

The Court awards Defendant's counsel \$1,920.00 in discovery sanctions. The Court finds 1.5 hours total to prepare the three routine discovery Motions and 0.5 hours to remotely attend the hearing at counsel's hourly rate is reasonable. The Court also

awards the three filing and court reporter no-show fees.

Plaintiff's counsel is ordered to pay Defendant's counsel \$1,920.00 on or before August 15, 2026.

VII. CONCLUSION

Based on the foregoing, the Court GRANTS Defendants' Motions to Compel Plaintiffs' Depositions. The Court orders Plaintiffs to appear for their depositions on or before July 17, 2026. In addition, the Court orders Plaintiffs to incur the costs associated with expediting the transcripts in time for the upcoming Jury Trial date of July 29, 2026.

In light of the foregoing schedule, the Court continues the Final Status Conference currently set for July 17, 2026, to July 24, 2026, at 10 a.m. Trial counsel are once again ordered to personally appear at the Final Status Conference unless a Notice of Settlement is filed before the Court calls the case that day.

In addition, Plaintiffs' counsel is ordered to pay Defendant's counsel \$1,920.00 in discovery sanctions on or before August 15, 2026.

IT IS SO ORDERED.

DATED: July 10, 2026

Hon. Michael R. Amerian

Judge, Superior Court

[1] All statutory references are to California codes unless stated otherwise.